

Ravindra Kumar Alias Ravindra Soni v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 8 February 2023 · Writ - C No. 1027 of 2023 · **Disposed with liberty to invoke clause 6.5(b); recovery stayed pending decision.**

HEADNOTE

A writ against a Tehsildar's recovery notice for electricity dues was disposed of with liberty to raise the dispute on accuracy of the bills under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 before the competent authority. The complaint, if filed within three days, is to be decided within seven days. Recovery stays in abeyance until that decision, and may proceed if no complaint is filed in time.

FACTUAL SUMMARY

Ravindra Kumar applied for an electricity connection on 7 October 2014. It was installed in 2018 at his shop in Tehsil Purwa, Unnao. He says no bill was ever served, yet dues of Rs 2,78,047 for 1 October 2016 to 29 July 2022 were suddenly demanded. He represented on 6 December 2022 for an enquiry and deposited Rs 30,000 in January 2023. The Tehsildar's notice of 28 October 2022 required payment within 15 days. He sought quashing of that notice, rectification, adjustment, instalments, and a bar on coercive recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy dispute as alternate remedy

HOLDING

The writ was disposed of with liberty to raise a dispute on the accuracy of the electricity bills under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 before the competent authority, who shall decide it within the period provided in the Code. On the submission the Court acted upon, that authority is the Executive Engineer of the division. The petitioner may file the complaint within three days, and it shall be decided within seven days. Till that decision, recovery proceedings remain in abeyance. If no application is made within three days, the department may recover the dues. ¶ 4-7

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court did not try the challenge to the Tehsildar's recovery notice and disposed of the writ with liberty to raise bill accuracy under clause 6.5(b). ¶ 4-5

clause-6.5-statutory-remedy-disputed-bill The sudden demand of Rs 2,78,047 was treated as a dispute on bill accuracy for the competent authority under clause 6.5(b), to be decided within the period fixed by the Code. ¶ 4-6

clause-6.5-representation-executive-engineer The Court disposed of the writ on the footing that the competent authority for this complaint is the Executive Engineer of the division concerned. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS 2,78,047 IS ACCURATE, AND WHETHER THE DEPOSITS OF RS 30,000 SHOULD BE ADJUSTED OR THE BALANCE RECOVERED IN INSTALMENTS

The writ did not examine the bill or the recovery notice on merits. Those questions are for the competent authority if a clause 6.5(b) complaint is filed within three days. ¶ 5-7

